

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

RAZVAN ROMAN,

Petitioner

VS.

LLIANA NICULESCU,

Respondent

) Case Number: FDI-22-796234

) Hearing Date: May 21, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JUDGE KATHLEEN DIESMAN

REQUEST FOR ORDER RE: ATTORNEY'S FEES AND COSTS, ORDERS RE NONCOMPLIANCE
WITH DISCLOSURES; SANCTIONS; BIFURCATE AND TERMINATE MARITAL STATUS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Razvan Roman and Respondent Lliana Niculescu.
- 2) On 3/28/22, Petitioner filed a Petition for Dissolution indicating the date of marriage is 4/10/17 and date of separation is 1/21/22 for a marriage of 4 years and 9 months.
- 3) On 11/21/25, Respondent filed a Response and Request for Dissolution indicating the date of marriage is 4/10/27 and date of separation is "TBD." The Court notes default was entered against Respondent on 6/5/24 and then set aside at hearing on 11/18/25.
- 4) On 3/13/26, Respondent filed a Request for Order, supportive attorney declaration, and Memorandum of Points and Authorities seeking: (a) \$75,000 in Family Code section 2030 attorney's fees and costs; (b) orders regarding noncompliance with disclosure requirements; (c) \$15,290 in Family Code section 271 sanctions; and (d) bifurcation of trial and termination of marital status. Respondent asserts that Petitioner has delayed settlement and caused her to incur unnecessary legal fees. It is Respondent's position that there is a clear disparity in access to funds

1 as Petitioner has assets valued over millions of dollars including several properties (one is San
2 Francisco, one in Tahoe, and one in Truckee) and multiple luxury cars. Attached as Exhibit A is a
3 proposed Status Only Judgment.

4 5) On 3/13/26, Respondent filed an Income and Expense Declaration.

5 6) On 4/17/26, Respondent filed a Declaration Regarding Service of Declaration of Disclosure
6 stating that Respondent's Preliminary Declaration of Disclosure was served on the other party by
7 email on 8/11/25.

8 7) On 4/20/26, Petitioner filed a Declaration Regarding Service of Declaration of Disclosure stating
9 that Respondent's Preliminary Declaration of Disclosure was served on the other party's attorney
10 by email on 4/15/26.

11 8) On 5/8/26, Petitioner filed a Responsive Declaration in opposition to Respondent's Request for
12 Order. Petitioner disputes that there is a disparity in access to funds, asserts his assets are not
13 liquid, and claims he provided approximately \$72,000 in voluntary funds to Petitioner since
14 separation (plus use of a car Petitioner values at \$36,000). Petitioner requests that the Court order
15 Respondent to "sell 3 community property watches in her possession with value of at least
16 \$40,000 to pay her attorney's fees based on Petitioner's previously proposed Stipulation."
17 Petitioner asserts the requests regarding disclosure requirements and related sanctions are moot.
18 Petitioner does not oppose bifurcation of trial and termination of marital status so long as the
19 Court reserves jurisdiction over all issues, including protective conditions under Family Code
20 section 2337(c). Petitioner states that he did not intentionally delay the dissolution process but
21 suffered a serious health problem beginning December 2025 and was unable to communicate
22 with his attorney.

23 9) On 5/8/26, counsel for Petitioner filed a declaration in support of Petitioner's position.

24 10) On 5/8/26, Petitioner filed an Income and Expense Declaration.

25 11) On 5/8/26, Petitioner filed a Memorandum of Points and Authorities.

26 12) On 5/14/26, Respondent filed a Reply Declaration asserting that Petitioner's Preliminary
27 Declaration of Disclosure was filed nearly four years after the deadline, claiming that the
28 voluntary funds Petitioner provided were reimbursements, and asserting that the watches were
29 gifts during marriage.

1 13) On 5/14/26, counsel for Respondent filed a declaration in support of Respondent's position.

2 14) On 5/14/26, Respondent filed a Memorandum of Points and Authorities.

3 15) On 5/18/26, Petitioner filed a Supplemental Declaration.

4 16) On 5/19/26, Respondent filed Respondent's Objections to Petitioner's Supplemental Declaration
5 of Mary F. Mock.

6 **B. Findings and Order**

7 1) As a preliminary issue, Respondent's Objections to Petitioner's Supplemental Declaration of
8 Mary F. Mock are SUSTAINED and motion to strike is GRANTED. The rules do not provide
9 for the filing of a such pleading.

10 2) Respondent's request for Family Code section 2030 attorney's fees is GRANTED; albeit in the
11 amount of \$45,000. The Court finds an award of attorney's fees and costs is appropriate here
12 because there is a demonstrated disparity between the parties in access to funds to retain or
13 maintain counsel and in the ability to pay for legal representation based on the significant value of
14 Petitioner's assets. The Court further finds that Petitioner is reasonably likely to have the ability
15 to pay for legal representation for both parties and \$45,000 in attorney's fees is reasonable and
16 necessary.

17 3) In so far as either party seeks additional financial information, they may conduct formal
18 discovery as both parties have now filed and served their Preliminary Declarations of Disclosure.

19 4) Respondent's request for Family Code section 271 sanctions is DENIED. Both parties
20 extensively briefed their respective commitments to settlement. The Court encourages both
21 parties to focus forward and attempt to reach a global settlement.

22 5) Public policy favors bifurcation and termination of marital status, and the Court finds that
23 Respondent's request for bifurcation of trial and termination of marital status is unopposed.

24 6) However, Respondent did not submit form FL-315 (Request for Separate Trial) with the Request
25 for Order, which is a mandatory form.

26 7) As such, Respondent's request for bifurcation and termination of marital status is **continued to**
27 **7/14/26 at 9 AM in Dept. 403**. The parties shall meet and confer in advance of this hearing to
28 attempt to resolve the issue. If meet and confer efforts are unsuccessful, Respondent shall file and
29

1 serve form FL-315 (Request for Separate Trial) at least 10 calendar days in advance of the next
2 hearing.

3 8) Counsel for Respondent shall prepare the Findings and Order After Hearing.

4 9) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
5 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
6 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
7 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
8 proposed order after hearing directly to the court. Failure to submit the order after hearing within
9 10 days may allow the other party to prepare a proposed order and submit it to the court in
10 accordance with CA Rules of Court, Rule 5.125(d).